

25STCV32885 25STCV32885

County: los-angeles

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Case Number: 25STCV32885 Hearing Date: July 16, 2026 Dept: 732

Gary William Carrington, Jr. v. Sixt Rent a Car, LLC,
et al.

Thursday, July 16, 2026

CASE NUMBER: 25STCV32885

OPPOSED

Defendant Sixt Rent a Car, LLC's Motion to
Compel Further Responses to Special Interrogatories from Plaintiff Gary William
Carrington Jr.

Facts: This is a motor vehicle personal injury
action. The Complaint alleges as follows. Plaintiff Gary William Carrington Jr.
(Plaintiff) was allegedly stopped in a parking lot located at 6104 Hollywood
Blvd., Los Angeles, CA 90028 on May 6, 2024, when Defendant Petras Johannes
Antonius ("Antonius") "negligently and unsafely reversed his vehicle" and
collided with Plaintiff's. (Complaint at p. 5.) The alleged incident occurred
while Antonius was in the course and scope of his employment with Defendant
Sixt Rent a Car, LLC ("Sixt"). (Id.) Plaintiff alleges that Defendants
breached their duty of care to Plaintiff, resulting in harm, injury, and
damages (severe bodily injuries, medical and related expenses, property damage,
loss of earnings, etc.). (Id.)

Procedural History:

Plaintiff filed the Complaint on November 10, 2025, alleging two causes of action:

1. Motor Vehicle

2. General Negligence

On December 18, 2025, Sixt filed an answer.

On May 14, 2026, an Informal Discovery Conference was held and completed regarding Plaintiff's responses to Special Interrogatories Nos. 22-27, which are at issue here.

Sixt filed the operative motion to compel further on May 26, 2026, which also requests monetary sanctions against Plaintiff and his counsel in the amount of \$760.00.

Sixt filed an answer to the complaint individually and on behalf of Antonius on June 1, 2026.

Plaintiff filed an opposition on July 2, 2026.

Sixt filed a reply on July 7, 2026.

Analysis:

I.

MOTION TO
COMPEL FURTHER – INTERROGATORIES

“Any party may obtain discovery . . . by propounding to any other party to the action written interrogatories to be answered under oath.” (Code Civ. Proc., § 2030.010(a).) If a propounding party is not satisfied with the response served by a responding party, the former may move the court to compel further interrogatory responses. (Code Civ. Proc., § 2030.300;

Sinaiko Healthcare Consulting, Inc. v.

Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.) The propounding party must demonstrate that the responses were incomplete, inadequate or evasive, or that the responding party

asserted objections that are either without merit or too general. (Code Civ. Proc., § 2030.300(a)(1)–(3); Sinaiko Healthcare Consulting, Inc., supra, 148 Cal.App.4th at 403.)

Sixt moves to compel further responses to

Special Interrogatories Nos. 22-27 from Plaintiff. The interrogatories fall into the same category: they all request Plaintiff to state the name(s) of his primary treating physician(s) in 2021 to the present.

Plaintiff provided the same objections to all

of the identified interrogatories, reasoning that they sought private medical history and/or treatment information that is unrelated or not directly relevant to the case and that they are overbroad and not reasonably calculated to lead to the discovery of admissible evidence.

Sixt argues that it is entitled to the full

scope of the information sought — i.e. the name(s) of Plaintiff's primary treating physician(s) from 2021 to the present — under the California Civil Discovery Act in anticipation of trial preparations and/or settlement discussion. (Motion at p. 1.) Specifically, Sixt argues that good cause exists, pointing to the IDC conference on May 14, 2026, and stating that this court "advised that the information requested by [Sixt] was proper and not overbroad and that [Sixt] needed this information in order to 'adequately and fully evaluate the case.'" (Motion at p. 2; Rubin Decl., at ¶ 9.) Lastly, Sixt contends that the requested information is relevant to the subject matter and reasonably calculated to lead to the discovery of admissible evidence pursuant to Code of Civil Procedure section 2017.010. (Motion at pp. 2-4.)

Plaintiff in opposition contends that he

provided meritorious and specific objections to the interrogatories. (Opposition at p. 3.) Plaintiff specifically argues that California law requires sought private medical information to be directly relevant to the alleged claims and injuries sued upon. (Opposition at p. 4, [citing *Britt v. Superior Court* (1978) 20 C3d 844, 864; *Hallendorf v. Superior Court* (1978) 85 Cal.App.3d 553 ["In other words, Defendant is entitled to discovery as to (a) treatments received as a result of the subject incident and (b) prior or subsequent treatments to the same body parts or conditions, but everything else is off limits."]]).) Plaintiff points to the Court of Appeal's holding in *Hallendorf*

v. Superior Court (1978) 85 Cal.App.3d 553, 555, 557, that the propounded interrogatories requesting “the names of All doctors examining or treating him for Any medical condition before the accident” were overbroad because they sought information not relevant to the injury at issue.” (Opposition at p. 5.) The interrogatories at issue here, however, are not comparable because they only seek the name(s) of Plaintiff’s primary treating physician(s) from 2021 to the present, limiting the temporal scope and not requesting information about “any medical condition.”

Plaintiff also argues that the sought information was already obtained through his response to Form Interrogatory No. 10.1, which requests that Plaintiff “identify all prior injuries, illnesses, or conditions involving the same parts of the body, as well as any claims or treatment relating to those conditions,” and speculation is not sufficient to entitle further discovery. (Opposition at pp. 7-8.).

The court does not find Plaintiff’s substantive position regarding the sought information about his primary physician from 2021 to the present holds merit. The interrogatories are limited to a reasonable temporal scope and only seek the name(s) of the physician(s). Plaintiff alleges “severe bodily injuries” including “sustained injuries to his health, strength, and activities and shock and injury to his nervous system” in his complaint, as well as headaches and injuries to the “neck, left shoulder, upper back, mid back, lower back, and left knee” attributable to the incident. (Complaint at p. 5; Opposition, Exhibit 1 at p. 10.) While Plaintiff has provided information regarding examinations or treatments he received for his injuries after the incident, the interrogatories at issue reasonably seek information that can expand upon and/or provide further relevant information about Plaintiff’s medical history relating to the injuries at issue.

The interrogatories are not overbroad on their face, and Plaintiff’s arguments are more anticipatory rather than anchored to the current discovery request. When the interrogatories’ probative value is balanced against Plaintiff’s privacy interests, the probative value outweighs the concerns due to the limited scope of the requested information in relation to Plaintiff’s claims and Plaintiff’s alleged injuries. (Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1251.)

Accordingly, the motion is GRANTED as to Special Interrogatories

Nos. 22-27.

II.

SANCTIONS

Statute provides that the court shall impose sanctions upon a party who unsuccessfully makes or opposes a motion to compel further response to interrogatories, requests for production of documents, or requests for admission, absent substantial justification otherwise. (Code Civ. Proc. §§ 2030.300, subd. (d); 2031.310, subd. (h); 2033.290, subd. (d).)

Sixt seeks sanctions in the amount of \$760.00, representing 4 hours of attorney work (2 hours preparing the motion and 2 hours preparing the reply and appearing at the hearing) at \$175 per hour, plus a \$60 filing fee. (Rubin Decl., ¶ 12.) The court finds sanctions to be reasonable as the motion to compel further was granted in its entirety and Plaintiff has not shown substantial justification or relevant circumstances making the imposition unjust. However, the court finds 2 hours for drafting a discovery motion to be excessive, and reduces the total hours of attorney work to 3.

Accordingly, the Court GRANTS the request for sanctions against Plaintiff and his counsel for the sum of \$585.00.

Superior
Court of California

County
of Los Angeles

Department
732

GARY WILLIAM CARRINGTON JR.,

Plaintiff,

v.

SIXT

RENT A CAR, llc., et al.,

Defendants.

Case No.:

25STCV32885

Hearing Date: July 16, 2026

[TENTATIVE] RULING RE:

DEFENDANT SIXT RENT A CAR, LLC'S Motion to Compel Further VERIFIED Responses to Special Interrogatories (SET ONE) FROM PLAINTIFF GARY WILLIAM CARRINGTON JR.

Defendant Sixt Rent A Car, LLC's Motion to Compel Further Responses to Special Interrogatories is GRANTED as to Interrogatories Nos. 22-27.

Defendant's request for sanctions against Plaintiff and his counsel is GRANTED for the reduced sum of \$585.00.

Defendant to provide notice.

Dated: July 16, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court